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PREMIER TITLE AGENCY

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**When recorded return to:**
Law Office of David Cisiewski, PLLC
4148 North Acadia Drive
Phoenix, AZ 85018

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A-172090

**NOTICE OF TRUSTEE'S SALE**

The following legally described trust property will be sold, pursuant to the power of sale under that certain Deed of Trust, Assignment of Rents and Security Agreement, recorded on June 10, 2024 as Instrument No. 2024-308381, records of Maricopa County, Arizona ("Deed of Trust"). **NOTICE! IF YOU BELIEVE THERE IS A DEFENSE TO THE TRUSTEE SALE OR IF YOU HAVE AN OBJECTION TO THE TRUSTEE SALE, YOU MUST FILE AN ACTION AND OBTAIN A COURT ORDER PURSUANT TO RULE 65, ARIZONA RULES OF CIVIL PROCEDURE, STOPPING THE SALE NO LATER THAN 5:00 P.M. MOUNTAIN STANDARD TIME OF THE LAST BUSINESS DAY BEFORE THE SCHEDULED DATE OF THE SALE, OR YOU MAY HAVE WAIVED ANY DEFENSES OR OBJECTIONS TO THE SALE. UNLESS YOU OBTAIN AN ORDER, THE SALE WILL BE FINAL.**

The Trustee's Sale shall occur at public auction to the highest bidder, at the office of the Trustee located at 4148 North Arcadia Drive, Phoenix, Arizona 85018 on February 3, 2027, at 3:00pm. (Arizona time) of said day:

| | |
|---|---|
| Legal Description of the Property: | See Attached Exhibit A |
| Tax Parcel Number & Purported Street Address of the Property: | Maricopa County, Arizona Parcel Nos. 104-53-001F and 104-53-001E.<br>No known street address |
| Original Principal Balance: | $2,400,000.00 |
| Name and Address of Current Beneficiary: | Silverback Capital Partners, LLC,<br>an Arizona limited liability company<br>4148 North Arcadia Drive<br>Phoenix, Arizona 85018 |
| Name and Address of Original Trustor: | Crossroads Commons, LLC,<br>a Delaware limited liability company<br>6929 N. Hayden Road, Suite #C4-252<br>Scottsdale, AZ 85250<br>Attn: Brittany Marycz, Manager |

Name and Current Address
of Current Trustor:

Crossroads Commons, LLC
6929 N. Hayden Road, Suite #C4-252
Scottsdale, AZ 85250

and

Crossroads Commons, LLC
c/o Brittany Marycz, Manager
4507 N. 14th St.
Phoenix, AZ 85014

Name and Address of
Trustee:

David Cisiewski, Esq.
Law Office of David Cisiewski, PLLC
4148 North Arcadia Drive
Phoenix, Arizona 85018
Phone: 602-321-6965

The appointed Trustee qualifies as trustee under the Deed of Trust in the trustee's capacity as a member of the State Bar of Arizona, as required by A.R.S. § 33-803, Subsection A(2).

If the sale is set aside for any reason, including Trustee's inability to covey title, the Purchaser at such sale shall be entitled only to a return of the monies paid to the Trustee. This shall be Purchaser's sole and exclusive remedy. The Purchaser shall have no further recourse against the Trustor, the Trustee, the Beneficiary, any Beneficiary Agent or the Beneficiary's Attorney.

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**NOTICE: THIS IS AN ATTEMPT TO COLLECT A DEBT FROM THE PARTY(S) NAMED HEREIN AND ALL INFORMATION OBTAINED SHALL BE USED FOR THESE PURPOSES.**

Dated this 29 day of October, 2026

David Cisiewski, Attorney at Law,
Trustee

State of MONTANA }
} ss.
County of Gallatin }

The foregoing instrument was acknowledged before me this 29 day of October, 2026, by David Cisiewski, Attorney at Law, as the Trustee.

Notary Public

March 27, 2030
My Commission expires

HALIE SMITH
NOTARY PUBLIC for the
State of Montana
Residing at
Belgrade, Montana
My Commission Expires
March 27, 2030

EXHIBIT A
Legal Description

Parcel 1

A parcel located in the Northwest quarter of Section 23, Township 1 North, Range 1 East, of the Gila and Salt River Meridian, Maricopa County, Arizona, being more particularly described as follows:

Commencing at the Northwest corner of said Section 23, from which the North quarter corner bears South 89 degrees 50 minutes 35 seconds East, a distance of 2669.36 feet;

Thence South 89 degrees 50 minutes 35 seconds East, on the North line of said Section 23, a distance of 34.26 feet;

Thence South 00 degrees 09 minutes 25 seconds West, departing the North line of said Section 23, a distance of 33.00 feet to the Southerly right-of-way of Lower Buckeye Road and the POINT OF BEGINNING of the parcel herein described:

Thence South 89 degrees 50 minutes 35 seconds East, on the Southerly right-of-way of Lower Buckeye Road, a distance of 300.11 feet;

Thence South 00 degrees 09 minutes 25 seconds West, departing the Southerly right-of-way of Lower Buckeye Road, a distance of 290.50 feet to the Southerly line of parcel described in Warranty Deed recorded as Document No. 2016-0246669, records of Maricopa County, Arizona;

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Thence South 01 degrees 59 minutes 02 seconds East, on Southerly line of said parcel, a distance of 34.00 feet;

Thence North 89 degrees 50 minutes 35 seconds West, on Southerly line of said parcel, a distance of 289.25 feet to the Easterly right-of-way of 83rd Avenue;

Thence North 01 degrees 59 minutes 02 seconds West, on the Easterly right-of-way of 83rd Avenue, a distance of 324.71 feet to the POINT OF BEGINNING of the parcel herein described.

Parcel 2

A parcel located in the Northwest quarter of Section 23, Township 1 North, Range 1 East, of the Gila and Salt River Meridian, Maricopa County, Arizona, being more particularly described as follows:

Commencing at the Northwest corner of said Section 23, from which the North quarter corner bears South 89 degrees 50 minutes 35 seconds East, a distance of 2669.36 feet;

Thence South 89 degrees 50 minutes 35 seconds East, on the North line of said Section 23, a distance of 34.26 feet;

Thence South 00 degrees 09 minutes 25 seconds West, departing the North line of said Section 23, a distance of 33.00 feet to the Southerly right-of-way of Lower Buckeye Road;
Thence South 89 degrees 50 minutes 35 seconds East, on the Southerly right-of-way of Lower Buckeye Road, a distance of 300.11 feet to the POINT OF BEGINNING of the parcel herein described;

Thence continuing South 89 degrees 50 minutes 35 seconds East, on the Southerly right-of-way of Lower Buckeye Road, a distance of 953.30 feet to the Easterly line of parcel described in Warranty Deed recorded as Document No. 2016-0246669, records of Maricopa County, Arizona;

Thence South 01 degrees 39 minutes 59 seconds East, departing the Southerly right-of-way of Lower Buckeye Road and on the Easterly line of said parcel described in Warranty Deed, a distance of 290.65 feet;

Thence North 89 degrees 50 minutes 35 seconds West, on Southerly line of said parcel described in Warranty Deed, a distance of 962.55 feet;

Thence North 00 degrees 09 minutes 25 seconds East, departing the Southerly line of said parcel described in Warranty Deed, a distance of 290.50 feet to the POINT OF BEGINNING of the parcel herein described.

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